

25STCV23431 25STCV23431

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Case Number: 25STCV23431 Hearing Date: August 7, 2026 Dept: 414

25STCV23431

Borunda v. American Honda Motor Co., Inc.

Friday,

August 7, 2026

[TENTATIVE] ORDER GRANTING DEFENDANT, AMERICAN HONDA MOTOR CO., INC.'S, MOTION TO COMPEL PLAINTIFF'S INITIAL RESPONSES TO FORM INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS (8391)

[TENTATIVE] ORDER GRANTING DEFENDANT, AMERICAN HONDA MOTOR CO., INC.'S, MOTION TO COMPEL PLAINTIFF'S INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS (8960)

[TENTATIVE] ORDER GRANTING DEFENDANT, AMERICAN HONDA MOTOR CO., INC.'S, MOTION TO COMPEL PLAINTIFF'S INITIAL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUEST FOR MONETARY SANCTIONS (3475)

[TENTATIVE] ORDER DENYING IN PART DEFENDANT, AMERICAN HONDA MOTOR CO., INC.'S, MOTION FOR AN ORDER THAT THE TRUTH OF MATTERS SPECIFIED IN DEFENDANT'S REQUESTS FOR ADMISSION, SET ONE ARE DEEMED ADMITTED BY PLAINTIFF AND REQUEST FOR MONETARY SANCTIONS (6735)

I. BACKGROUND

This

action alleges claims for violations under the Song Beverly Consumer Warranty

Act in connection with a warranty issued by Defendant for a 2020 Honda

Ridgeline.

Defendant

requests an order compelling Plaintiff to serve initial responses to discovery and for an order deeming admitted Plaintiff's responses to requests for admission. Defendant served discovery on December 8, 2025, and Plaintiff failed to respond to date. Defendant requests imposition of sanctions incurred for each of four motions.

II. LEGAL STANDARDS

Where

a party does not timely respond to interrogatories or a request for production of documents, the court has authority to compel a response. (Code Civ. Proc., §2030.290(b), 2031.020) Untimely responses result in a waiver of objections. (Code Civ. Proc., § 2030.290(a), Code Civ. Proc., § 2031.300 (a).)

Where

a party fails to respond to requests for admission, the court can deem the requests admitted against the non-responding party unless it finds that the non-responding party has subsequently served before the hearing, a proposed response to the requests that substantially complies with statutory requirements. (Code Civ. Proc., § 2033.280 subd. (c)). Imposition of sanctions is mandatory where a party's failure to respond to the requests for admission necessitates the motion. Code Civ. Proc., § 2033.280 subd. (c).

III. DISCUSSION

Plaintiff

does not dispute that responses were not timely served. Plaintiff has since served objections on January 16, 2026, and further verified responses on July 27, 2026. Therefore, Plaintiff contends that the motions are moot.

Plaintiff

seeks a waiver of objections. The Court has discretion to relieve a party from this waiver on its determination that both of the following conditions are satisfied: (1) the party has subsequently served a response that is in substantial compliance with statute, and (2) the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, §2030.290 (a).)

To

be clear, Defendant's motions seek an order to compel initial responses, not further responses, as referenced in Plaintiff's counsel's declaration. Defendant's reply briefs acknowledge Plaintiff's untimely responses and argue that Plaintiff is not entitled to a waiver of objections. Defendant contends that the request is procedurally and subsequently defective, because Plaintiff did not file a motion for relief from waiver objections.

The

part of the respective statutes governing relief from waiver does not require a separately noticed motion for that relief. A separately noticed motion for relief from waiver for the same discovery at issue does not promote judicial efficiency. Defendant responded to that request in the reply briefs, all of which the Court has considered.

The

declaration of Lara Abdo does not state what occurred that could be considered mistake, inadvertence, surprise or excusable neglect. Moreover, the declaration addresses responses to Volkswagen Group of America, who is not a defendant in this matter. The motions do not request an order compelling further responses. Accordingly, the request for a waiver of objections is denied.

As

Plaintiff subsequently served verified responses to the requests for admission, the request for a deemed admitted order is denied.

The

motions are not moot as Defendant requests imposition of sanctions. Plaintiff has not shown substantial justification for failing to timely respond to discovery. The Court awards sanctions of \$2,160 in fees and costs incurred for each of four motions.

IV. CONCLUSION

Based

on the foregoing, Defendant's three motions to compel initial responses to form interrogatories, special interrogatories, and request for production of documents are GRANTED. The Court does not deem the requests for admission admitted. Plaintiff is ordered to serve verified responses and production of documents without objections to all discovery at issue within 10 days.

The

Court imposes sanctions against Plaintiff and counsel, Strategic Legal Practices, APC, jointly and severally, in the amount of \$2,160 incurred for each of four motions [total \$8640], payable to Defendant within 20 days.